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CHIEF ADMINISTRATIVE LAW JUDGE
TRACIE L. COVEY
TERESA A. DEMEO
CHRISTOPHER M. TATE
MATTHEW J. TIERNEY
PRINCIPAL ADMINISTRATIVE LAW JUDGE

STATE OF NEW YORK
UNEMPLOYMENT INSURANCE APPEAL BOARD
ADMINISTRATIVE LAW JUDGE SECTION
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SYRACUSE NY 13202
(315) 479 3380
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HERBERT C. FOWLER
SENIOR ADMINISTRATIVE LAW JUDGE

DECISION AND NOTICE OF DECISION
DECISION Y AVISO DE LA DECISION TOMADA

A L J Case No 120-00329

Mailed and Filed February 5 2020

IN THE MATTER OF

KIMBERLY SCHLAFFER
121 MARION ST
ROCHESTER NY 14610-1116

THE KL GROUP INC
DBA JOHNSTONE SUPPLY
95 HALSTEAD STREET
ROCHESTER NY 14610

PAYCHEX
PO BOX 2000
HENRIETTA NY 14467-2000

Department of Labor Office 831

Hearing Requested January 10 2020

A S O -SYRACUSE

PLEASE TAKE NOTICE that this decision has been duly mailed on the date listed above. If you appeared at the hearing and are not satisfied with this decision you may appeal within **TWENTY DAYS** from the date this decision was mailed. **READ IMPORTANT INFORMATION ON REVERSE SIDE REGARDING YOUR RIGHT TO APPEAL.** Any party who failed to appear at the hearing has the right to apply to reopen the case. For the application to be granted the party must apply within a reasonable time and must establish good cause for its failure to appear.

POR FAVOR TOME NOTA esta decision ha sido debidamente enviada por correo en la fecha que aparece arriba. Si usted asistio a la audiencia y no esta satisfecho con la decision puede apelar dentro de **VEINTE DIAS** contados a partir de la fecha en que esta decision fue enviada por correo. **LEA LA INFORMACIÓN IMPORTANTE AL REVERSO SOBRE SUS DERECHOS DE APELACIÓN.** Cualquiera de las partes que falle en comparecer a la audiencia tiene el derecho de solicitar que se reabra su caso. Para que dicha solicitud sea otorgada la parte interesada debe solicitarlo dentro de un periodo de tiempo razonable y debe establecer buena causa por no haber comparecido a la audiencia.

DOCUMENTO IMPORTANTE PUEDE OBTENER UNA TRADUCCIÓN DEL MISMO LLAMANDO
AL 1 888 209 8124 (FUERA DEL ESTADO DE NUEVA YORK 1 877 358 5306)

ISSUES

Employer's objection to claimant's entitlement
Employer's Application to Reopen Case No 119-09244
Employer's untimely and/or inadequate protest of charges based on misconduct or voluntary quit

EMPLOYER SECOND DEFAULT - EMPLOYER'S CASE

FINDINGS OF FACT The employer requested a hearing objecting to the claimant's entitlement to benefits. The employer was present at the hearing. The claimant failed to appear. When the case was called, the employer was not ready to proceed because the employer witness and its representative did not have the necessary file documents to participate in the hearing. By default decision of the Administrative Law Judge (A L J Case No 119-09244), the employer's objection was overruled and the initial determination was sustained. The employer applied to reopen that decision.

NOTICE OF DECISIONCLAIMANTS**IF YOU DISAGREE WITH THIS DECISION, YOU HAVE A RIGHT TO APPEAL TO THE UNEMPLOYMENT INSURANCE APPEAL BOARD**

Parties may be represented by lawyers or other persons of their choice on appeal to the Appeal Board. For representing a claimant a lawyer or an agent registered by the Appeal Board may charge a fee. The fee must be approved by the Appeal Board before payment may be accepted by such lawyer or agent. No other person may charge a fee for representing a claimant. If you do not have enough money to hire a lawyer or registered agent, you may be able to get one free through your local Legal Aid Society or Legal Services Program.

TO APPEAL A DECISION

- 1 Continue to follow **all** instructions from the Unemployment Insurance office where you originally filed your claim and to certify for benefits as long as you are unemployed and claiming benefits. This will protect your rights to any benefits you claim.
- 2 Within twenty (20) days of the date printed on the face of this decision, mail a letter to the office where you originally filed your claim or to the Appeal Board at P O Box 15126 Albany New York 12212 5126 or fax your appeal to the Appeal Board at (518) 402 6208. Please state that you wish to appeal and the reasons for your appeal. Include your ALJ Case Number (found just above your name on the face of the Notice of Decision) and a copy of the Notice of Decision.
- 3 Claimants who appeal are not required to pay a deposit on filing an appeal.

EMPLOYERS

If you wish to appeal this decision, you may file a notice of appeal within twenty (20) days from the date printed on the face of this decision to the office where the claim was originally filed and which issued the initial determination or to the Unemployment Insurance Appeal Board at P O Box 15126 Albany New York 12212 5126 or you may fax your notice of appeal to the Appeal Board at (518) 402 6208. Such notice of appeal should include the A L J Case Number (found on the face of this Notice of Decision) the reason(s) for the appeal and a copy of the Notice of Decision.

ALL PARTIES WILL RECEIVE A NOTICE OF RECEIPT OF APPEAL DIRECTLY FROM THE APPEAL BOARD AFTER ANY APPEAL IS MADEINSTRUCCIONES A LOS RECLAMANTESRECLAMANTES**SI NO ESTE DE ACUERDO CON ESTA DECISION, USTED TIENE DERECHO DE APELARLA A LA JUNTA DE APELACIONES DEL SEGURO POR DESEMPLEO**

Las partes, si lo desean, pueden estar representadas por abogados u otras personas que ellos seleccionen en la apelación a la Junta de Apelaciones (Appeal Board). Un abogado o un agente que este registrado por la Junta de Apelaciones puede cobrarse honorarios por representarle. Estos honorarios deben ser aprobados por la Junta de Apelaciones antes que el pago pueda ser aceptado por dicho abogado o agente registrado. Ninguna otra persona podrá cobrar honorarios por representar al reclamante. Si usted no tiene suficiente dinero para contratar a un abogado o un agente registrado, puede conseguir uno gratis a través de la Sociedad de Asistencia Legal (Legal Aid Society) o el Programa de Servicios Legales (Legal Services Program).

PARA APELAR LA DECISION

- 1 Continúe siguiendo **todas** las instrucciones de la oficina del Seguro por Desempleo (Unemployment Insurance) donde usted presentó su reclamo originalmente y para certificar por los beneficios mientras permanezca desempleado y este reclamando beneficios. Esto protegerá su derecho a recibir cualquier beneficio que reclame.
- 2 Antes de cumplirse veinte (20) días de la fecha que aparece al frente de esta decisión, envíe una carta a la oficina donde presentó originalmente su petición o al Appeal Board a P O Box 15126 Albany New York 12212 5126 o envíe por fax su apelación al Appeal Board al (518) 402 6208. Por favor, explique que desea apelar y las razones que tiene para hacerlo. Incluya su número de caso ALJ (lo encontrará justo encima de su nombre al frente de este Aviso de Decisión) y envíe una copia de este Aviso de Decisión.
- 3 Los reclamantes no necesitan depositar dinero para poder apelar su caso.

TODAS LAS PARTES RECIBIRÁN UN AVISO DE RECIBO DE APELACIÓN DIRECTAMENTE DE LA JUNTA DE APELACIONES DESPUÉS DE QUE SU PETICIÓN SEA RECIBIDA

A hearing was held. The employer was present at the hearing. The claimant failed to appear. When the case was called the employer was not ready to proceed because a necessary witness was unavailable.

OPINION Based upon a review of the record and evidence herein, the employer is held in default because the employer failed to proceed at the requested hearing.

DECISION The employer's application to reopen the decision of the Administrative Law Judge is denied. That decision continues in effect.

The initial determination is sustained. The claimant is allowed benefits.

TO THE EMPLOYER

YOU HAVE NOT APPEARED AT TWO SCHEDULED HEARINGS. ANY FURTHER REQUEST FOR REOPENING MUST BE MADE TO THE APPEAL BOARD. A request to reopen must be made in writing and sent by fax to (518) 402-6208 or by mail to the Unemployment Insurance Appeal Board, PO Box 15126, Albany, NY 12212-5126. The request must include the case numbers that you are requesting to reopen and an explanation of the reason for the failure to appear at both hearings. Attach any documentation that supports your reason. You will be granted another hearing only if the Board determines, based upon its review of the case file, that your failure to appear or proceed at both prior hearings was for good cause or if in its discretion the Board orders another hearing to consider that question.

/s/ Herbert Fowler

Administrative Law Judge

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INSTRUCCIONES A LOS RECLAMANTES**RECLAMANTES**

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